

HOUSE No. 848

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to campaign finance reform.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 848

By Representative Lawn of Watertown, a petition (accompanied by bill, House, No. 848) of John J. Lawn, Jr., relative to campaign finance reform. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to campaign finance reform.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 50 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by deleting the nineteenth paragraph in its entirety and
3 inserting in its place the following:-

4 "Political committee" shall apply only to a committee elected as provided in chapter fifty-
5 two, except that in chapter fifty-five it shall also apply to any committee, association,
6 organization or other group of persons, including a national, regional, state, county, or municipal
7 committee, which receives contributions or makes expenditures for the purpose of influencing
8 the nomination or election of a candidate, or candidates, or of presidential and vice presidential
9 electors, or for the purpose of opposing or promoting a charter change, referendum question,
10 constitutional amendment, or other question submitted to the voters.

SECTION 2. Section 1 of chapter 55 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting at the end of the definition of “contribution” the following sentence in line 72:-

It shall not include any payments in the aggregate of less than \$7,500 per calendar year made by individuals for food, beverages, or goods sold by a political party committee organized pursuant to G.L. c. 52, §§2 and 3 for a nominal price per item at events such as bake sales, farmer’s markets, or community festivals even if the purchase price exceeds the cost of the goods sold.

SECTION 3. Said section 1 of said chapter 55, as so appearing, is hereby further amended by inserting after the definition of “independent expenditure” the following definition:-

“In-kind contribution”, anything of value that is provided to a committee or candidate in a non-monetary form, including, but not limited to: (i) the value of goods or services provided free of charge; (ii) the difference between the cost charged and the usual market value charged; or (iii) the amount paid by a person or entity on behalf of the committee or candidate.

SECTION 4. Section 2 of chapter 55, as so appearing, is hereby amended by striking from paragraph (1) the words “fifty dollars” wherever they appear and inserting in its place the following: - “one hundred dollars”.

SECTION 5. Section 2 of chapter 55, as so appearing, is hereby amended by striking from paragraph (3) the words “fifty dollars” and inserting in its place the following: - “one hundred dollars”.

SECTION 6. Section 3 of chapter 55, as so appearing, is hereby amended by striking the fifth line of the eighth paragraph in its entirety and inserting in its place the following: -

The name of a candidate who is required to file campaign finance reports with the director, and who fails to file any statement or report after the initiation of civil proceedings under this section to compel the filing, shall not be printed on any municipal preliminary, state primary or general or special election ballot for a period of ten years from the due date of the statement or report not filed or unless the statement or report is timely filed pursuant to chapter 53 or any charter or special law establishing the filing deadline, whichever comes first.

SECTION 7. Section 3 of chapter 55, as so appearing, is hereby amended by striking the seventh line of the eighth paragraph in its entirety and inserting in its place the following: -

Any candidate who is disqualified from appearing on any municipal preliminary, state primary or general or special election ballot as set forth above shall be ineligible to be nominated or elected as a write-in or sticker candidate for a period of ten years from the due date of the statement or report not filed or unless the candidate shall have filed the statements or reports which are the subject of the civil litigation by the date of the municipal preliminary, state primary or general or special election in which the candidate is seeking nomination or election, whichever comes first.

SECTION 8. Section 3 of chapter 55, as so appearing, is hereby amended by adding a new second sentence to the ninth paragraph as follows: -

Any records or documents received or reviewed by the director as part of an audit or investigation shall not be a public record while in the custody and possession of the agency.

52 SECTION 9. Section 3 of chapter 55, as so appearing, is hereby amended by striking the
53 first sentence in the eleventh paragraph in its entirety and inserting in its place the following: -

54 The director shall inform any person or committee under investigation by said director by
55 certified mail, return receipt requested, by personal delivery, by leaving a copy of the notice at
56 the person's last and usual place of residence, by delivering a copy of the notice to an attorney
57 who has appeared on behalf of the alleged violator, or by service may be made by a deputy
58 sheriff or constable either by personal delivery or leaving at the person's last and usual place of
59 residence, of his intention to present to the attorney general evidence of any alleged violation of
60 this chapter.

61 SECTION 10. Section 3 of chapter 55, as so appearing, is hereby amended by adding (a)
62 at the beginning of the first paragraph; by adding (b) at the beginning of the sixth paragraph; by
63 adding (c) at the beginning of the twelfth paragraph; by adding (d) at the beginning of the
64 thirteenth paragraph; by adding (e) at the beginning of the fourteenth paragraph; and by adding a
65 new section 3(f) as follows: -

66 (f) The director may resolve any matter concerning violation of this chapter through the
67 following disposition method:

68 (1) If the director determines, after notice and opportunity for hearing, that any candidate,
69 committee, or other person or entity has failed to file a statement or report as required by law, or
70 if it appears to the director that any such statement or report filed with him does not conform to
71 law, the director may order such candidate, committee, or other person or entity to file such
72 statement or report, or to amend such statement or report so that it conforms to the law, and may
73 take such other action, including the imposition of an administrative fine, an order to disgorge a

contribution received that does not conform to the law or a contribution received in a manner that does not conform to the law, or any other such relief as in the director's judgment may be necessary to carry out the purposes of this chapter. Any administrative fine imposed pursuant to this chapter shall be consistent with the penalties set forth in the applicable section or sections of G.L. chapter 5, and any fine collected shall be deposited in the Local Election Early Voting Fund established by section 42 of chapter 10.

(2) No order under this section may be entered without prior notice of and opportunity for hearing. Notice shall conform to section 3(b).

(3) Any person aggrieved by a final decision of or order issued by the director in an adjudicatory proceeding hereunder may obtain judicial review pursuant to section fourteen of chapter thirty A.

SECTION 11. Section 5 of said chapter 55, as so appearing, is hereby amended by striking out the word "address" in line 10 and inserting in place thereof the following:-

business address.

SECTION 12. Said section 5 of said chapter 55, as so appearing, is hereby further amended by striking out the phrase "the name and residential address" in lines 17 and 18 and inserting in place thereof the following:-

the name and business or residential address.

SECTION 13. Said section 5 of said chapter 55, as so appearing, is hereby further amended by striking out the phrase "residential address" in line 19 and inserting in place thereof the following:-

business or residential address.

SECTION 14. Said section 5 of said chapter 55, as so appearing, is hereby further amended by striking out the phrase “name and address” in line 21 and inserting in place thereof the following:-

name and business or residential address.

SECTION 15. Said section 5 of said chapter 55, as so appearing, is hereby further amended by striking out the word “addresses” in line 62 and inserting in place thereof the following:-

business or residential addresses.

SECTION 16. Section 6 of said chapter 55, as so appearing, is hereby further amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

A political committee, duly organized, may receive, pay or expend money or other things of value for the enhancement of the political future of the candidate or the principle for which the committee was organized; provided, however, that the expenditure shall not be primarily for the candidate’s or any other person’s personal use. The director shall establish reasonable rules and regulations concerning the expenditures.

SECTION 17. Section 6 of said chapter 55, as so appearing, is hereby amended by striking from the second paragraph the numerals \$100 and inserting in place thereof the following: - \$500.

SECTION 18. Section 6 of said chapter 55, as so appearing, is hereby amended by striking the fourth paragraph in its entirety and inserting in place thereof the following: -

Except as otherwise provided in section six B, a political committee not organized on behalf of an individual candidate may contribute to another political committee not organized on behalf of an individual candidate; provided, however, that the aggregate of contributions to elected political committees or non-elected political committees organized on behalf of a political party pursuant to G.L. c. 52, §1 shall not exceed in any one calendar year the sum of \$15,000, and provided further the aggregate of such campaign contributions to any one such political committee established pursuant to G.L. c. 52, §§2 and 3 shall not exceed in any one calendar year the sum of \$1,500; and provided further that the aggregate of contributions to a political committee other than a political party committee shall not exceed in any one calendar year the sum of \$1,500. A political committee not organized on behalf of an individual candidate, other than a political party committee, may contribute to the campaign fund of a candidate; provided, however, that the aggregate of all such contributions for the benefit of any one candidate and such candidate's committee shall not exceed the sum of \$1,500 in any one calendar year. The political committee of a political party may contribute to the campaign fund of a candidate; provided, however, that the aggregate of all contributions of money for the benefit of any one candidate and the non-elected political committee organized on such candidate's behalf shall not exceed in any one calendar year the sum of \$7,500 in the case of the state committee and the sum of \$1,500 in the case of each town or ward committee. For the purposes of the limitations established by this section, all campaign contributions made by political committees established, financed, maintained or controlled by any person, including any parent committee of a subsidiary committee or any person other than a natural person, shall be considered to have been made by a single political committee. Nothing in this section shall be

138 construed to permit contributions to political committees which are otherwise prohibited by this
139 chapter.

140 SECTION 19. Section 6A of said chapter 55, as so appearing, is hereby amended by
141 deleting the section in its entirety.

142 SECTION 20. Section 7 of chapter 55, as so appearing, is hereby amended by deleting
143 the section in its entirety and inserting in its place the following: -

144 Section 7. Receipts, disbursements and contributions regulated; limitations; penalties

145 No person or combination of persons, including a corporation formed under the
146 provisions of chapter one hundred and eighty, shall in connection with any nomination or
147 election receive money or its equivalent, expend or disburse or promise to expend or disburse the
148 same, except as authorized by this chapter. A political committee or a person acting under the
149 authority or on behalf of such a committee may receive money or its equivalent, or expend or
150 disburse or promise to expend or disburse the same for the purpose of aiding or promoting the
151 success or defeat of a candidate at a primary or election or a political party or principle in public
152 election or favoring or opposing the adoption or rejection of a question submitted to the voters,
153 and for other purposes expressly authorized by this chapter subject, however, to the provisions
154 thereof. A candidate may make expenditures without limitation for the purposes of his own
155 campaign and may make campaign contributions without limitation for the benefit of the non-
156 elected political committee organized on his behalf.

157 No candidate or candidate's committee shall receive a transfer of funds or assets from any
158 federal political committee.

159 Violation of any provision of this section or section seven A shall be punished by
160 imprisonment for not more than six months or by a fine of not more than five hundred dollars.

161 SECTION 21. Section 7A of said chapter 55, as so appearing, is hereby amended by
162 striking from paragraph (a)(1) the numerals \$1,000 and inserting in place thereof the following: -
163 \$1,500

164 SECTION 22. Section 7A of said chapter 55, as so appearing, is hereby amended by
165 striking paragraph (a)(2) in its entirety and inserting in place thereof the following: -

166 An individual may in addition make campaign contributions for the benefit of elected
167 political committees or non-elected political committees organized on behalf of a political party;
168 provided, however, that that the aggregate of such campaign contributions to any one such
169 political committee established pursuant to G.L. c. 52, §1 shall not exceed in any one calendar
170 year the sum of \$15,000, and provided further the aggregate of such campaign contributions to
171 any one such political committee established pursuant to G.L. c. 52, §§2 and 3 shall not exceed
172 in any one calendar year the sum of \$1,500.

173 SECTION 23. Section 7A of chapter 55, as so appearing, is hereby amended by striking
174 from paragraph (a)(3) the words “five hundred dollars” and inserting in place thereof the
175 following: - \$1,500

176 SECTION 24. Section 7A of chapter 55, as so appearing, is hereby amended by striking
177 from paragraph (b) the words “two hundred dollars” and inserting in place thereof the following:
178 - \$500

179 SECTION 25. Section 7A of chapter 55, as so appearing, is hereby amended by striking
180 from paragraph (c) the numbers “\$200” and inserting in place thereof the following: - \$500

181 SECTION 26. Said chapter 55, as so appearing, is hereby amended by inserting after
182 section 7A the following section:-

183 Section 7B. Using the federal consumer price index for the Boston statistical area, the
184 director shall biennially index for inflation the contribution and aggregate amount limits referred
185 to in sections 6 and 7A of this chapter. Not later than December 31st of each even numbered year
186 beginning with 2026, the director shall calculate and publish such indexed limits, rounded up to
187 the nearest \$50; provided, however, that the director shall use the unrounded limits when
188 indexing the limits for inflation in the subsequent even numbered year.

189 SECTION 27. Said chapter 55, as so appearing, is hereby amended by deleting Section
190 8A in its entirety.

191 SECTION 28. Section 9 of said chapter 55, as so appearing, is hereby amended by
192 striking from the title of the section the words “\$50 or”.

193 SECTION 29. Section 9 of said chapter 55, as so appearing, is hereby amended by
194 striking from the first sentence the phrase “\$50 in cash or \$100 in money order or bank check”
195 and inserting in its place the following: - \$100 in cash, money order or bank check.

196 SECTION 30. Section 9 of said chapter 55, as so appearing, is hereby amended by
197 striking from the sixth sentence the numbers “\$50” and inserting in its place the following: -
198 \$100.

199 SECTION 31. Section 13 of said chapter 55, as so appearing, is hereby amended by
200 striking the first sentence in their entirety and inserting in their place the following: -

201 No person employed for compensation, other than an elected officer, by the
202 commonwealth or any county, city or town shall directly or indirectly solicit or receive any gift,
203 payment, contribution, assessment, subscription or promise of money or other thing of value for
204 the political campaign purposes of any candidate for public office or of any political committee,
205 or for any political purpose whatever. This prohibition shall not apply to any person when on an
206 uncompensated leave of absence from such position or to a member of the National Guard when
207 not on active duty. This section shall not prevent such persons from being members of political
208 organizations or committees. A person so employed may not serve as the treasurer of a political
209 committee. The soliciting or receiving of any gift, payment, contribution, assessment,
210 subscription or promise of money or other thing of value by a non-elected political committee
211 organized to promote the candidacy for public office of a person so employed for compensation
212 by the commonwealth or any county, city or town, shall not be deemed to be a direct or indirect
213 solicitation or receipt of such contribution by such person; provided, however, that no such gift,
214 payment, contribution, assessment, subscription or promise of money or other thing of value may
215 be solicited or received on behalf of such a person from any person or combination of persons if
216 such person so employed knows or has reason to know that the person or combination of persons
217 has an interest in any particular matter in which the person so employed participates or has
218 participated in the course of such employment or which is the subject of his official
219 responsibility.

220 SECTION 32. Section 14 of said chapter 55, as so appearing, is hereby amended by
221 striking out the first paragraph and inserting in place thereof the following:

Section 14. No person shall in any building or part thereof occupied for state, county or municipal purposes demand, solicit or receive any payment or gift of money or other thing of value for the purposes set forth in section 13 of this chapter; provided, however, that this section shall not apply to an individual, candidate, political committee or a person acting on behalf of such individual, candidate or political committee, that rents or leases a portion of a building occupied for state, county or municipal purposes, other than the state house or a city or town hall, for the purpose of holding a meeting, fundraiser, or similar event on the same terms and conditions as offered to a member of the public; and provided further, that no government business is conducted in that portion of the building during the meeting, fundraiser, or event.

SECTION 33. Said section 18 of said chapter 55, as so appearing, is hereby amended by striking out the phrase "January 20" wherever it may appear and inserting in place thereof the phrase "January 31".

SECTION 34. Said Section 18 of chapter 55, as so appearing, is hereby amended by striking out paragraph (a)(1)(i) in its entirety and inserting in its place the following:

(i) the eighth day preceding a city or town preliminary or primary, including a caucus, the eighth day preceding a city or town election, and if a town election held on or after November 1 or city election, as a final report, January 20 in the following year complete as to December 31 of the prior year, and all other town elections, as a final report, the thirtieth day following said election;

SECTION 35: Section 18 of said chapter 55, as so appearing, is hereby amended by striking from paragraph (e)(2) the numbers "\$50" wherever they appear and inserting in its place the following: - \$100.

SECTION 36: Section 18 of said chapter 55, as so appearing, is hereby amended by striking from paragraph (e)(8) the numbers “\$50” and inserting in its place the following: - \$100.

SECTION 37: Section 18 of said chapter 55, as so appearing, is hereby amended by striking from paragraph (f) the numbers “\$50” wherever they appear and inserting in its place the following: - \$100.

SECTION 38. Section 18A of said chapter 55, as so appearing, is hereby amended by striking out the phrase “after the tenth day, but more than 24 hours before the date of any election,” and inserting in place thereof the following:-

after the tenth day before the date of the election and up through the date of the election.

SECTION 39. Said section 18A of said chapter 55, as so appearing, is hereby further amended by striking out subsection (d) and inserting in place thereof the following:-

(d) For the purposes of this section, an "independent expenditure PAC" shall be a political committee or other entity that receives contributions to make independent expenditures. An independent expenditure PAC shall organize in accordance with section 5 of this chapter and shall, if organized with the director, appoint a depository bank in accordance with section 19 of this chapter. An independent expenditure PAC that organizes and files reports with the director shall file reports in accordance with the schedule set forth in section 19(b)(2) of this chapter. An independent expenditure PAC that organizes and files reports with a city or town clerk shall file reports in accordance with the schedule set forth in section 18(a)(1) of this chapter.

In addition to any reports required by sections 18 or 19 of this chapter, the independent expenditure PAC shall file reports as required by subsections (a) and (b) of this section. Such

reports shall be filed with the director if the independent expenditure PAC is organized with the office of campaign and political finance, or with the city or town clerk if organized with the clerk. Reports filed pursuant to subsections (a) and (b) of this section shall disclose contributions received, expenditures made and liabilities incurred during the reporting period. The reporting period for the first report filed by an independent expenditure PAC pursuant to subsections (a) or (b) of this section shall commence on the day the independent expenditure PAC was organized and shall be complete through the date of the latest expenditure disclosed in the report. The reporting period for the next report shall commence on the date following the last date included in the previous report filed pursuant to subsections (a) or (b) of this section and shall be complete through the date of the latest expenditures disclosed in the report. An independent expenditure PAC shall also file a year-end report by January 31 of each year the independent expenditure PAC remains in existence and shall file a final report upon dissolution. The reporting period for the year-end report shall be cumulative for the calendar year, commencing on January 1 and ending on December 31 of each calendar year. The director shall adopt regulations regarding independent expenditure PACs.

SECTION 40. Section 18A(d) of said chapter 55, as so appearing, is hereby amended by striking out the phrase “January 20” and inserting in place thereof the phrase “January 31”.

SECTION 41. Section 18B of said chapter 55, as so appearing is hereby amended by deleting the section in its entirety.

SECTION 42. Section 18C of said chapter 55, as so appearing, is hereby amended by striking Paragraph (a) in its entirety and inserting in its place the following: -

(a) The director shall develop an electronic reporting system for the submission, retrieval, storage and public disclosure of campaign finance reports and financial activity statements required to be filed with the director. The director shall make all the data filed available on the internet except for the building number and street name of any person or entity listed as having made a political contribution to the candidate or political committee filing the report. The address information suppressed must remain available on the report maintained in the director's office but shall not be available as a public record.

SECTION 43. Section 18C of said chapter 55, as so appearing, is hereby amended by deleting Paragraph (b)(viii) in its entirety.

SECTION 44. Section 18D of said chapter 55, as so appearing, is hereby amended by deleting the section in its entirety.

SECTION 45. Section 18E of said chapter 55, as so appearing, is hereby amended by deleting from (b) the numbers "\$50" and inserting in its place the following: - \$100.

SECTION 46. Said section 19 of chapter 55, as so appearing, is hereby further amended by striking from the first sentence in paragraph (a) the words "the treasurers of people's committees and political action committees that file with the director other than independent expenditure PACs" and inserting in its place the following: -

the treasurers of people's committees, political action committees and independent expenditure PACs that file with the director.

SECTION 47. Said section 19 of said chapter 55, as so appearing, is hereby further amended by striking out the word “and” in line 47 and inserting after the word “report” in line 48 the following:-

; (iv) a list of all in-kind contributions of more than \$50 received as of the last day of the preceding month and since the last statement, including an alphabetical list of names and addresses of each person making such contribution, the date received, the type of in-kind contribution and the value of the in-kind contribution; and (v) a list of new liabilities incurred as of the last day of the preceding month, including the name and address of the person to whom the liability exists, together with a clear statement of purpose for which it was incurred.

SECTION 48. Section 19 of said chapter 55, as so appearing, is hereby further amended by striking out subsection (c) and inserting in place thereof the following subsection: -

(c) Except as otherwise provided in this section, all payments for campaign purposes made by or for the benefit of a candidate or by the treasurer of a political committee which are in excess of \$100 shall be made only from funds on deposit in the depository through checks drawn on the depository and indicating that the checks are drawn on the campaign account of the candidate or the political committee involved, or in another form as permitted by this section. All checks drawn on the campaign account shall be payable to the order of a named payee. The memo line of the check shall be used by the political committee issuing the check to indicate the specific purpose of the expenditure. A political action committee or political party committee making an expenditure to support or oppose a candidate shall identify the candidate on the check.

Notwithstanding the restrictions in the paragraph above, a committee may reimburse individuals, including the candidate or treasurer, in amounts greater than \$100; provided,

327 however, that the reimbursement amounts shall not be more than \$1,000; and provided further,
328 that the committee complies with the following requirements: (i) reimbursements shall be made
329 to individuals not later than thirty days after the date of the first reimbursed expenditure; (ii)
330 reimbursement reports shall be filed within three days of the reimbursement check being issued
331 to disclose underlying expenditures; (iii) no person who is authorized to make expenditures for a
332 committee may write a check payable to themselves; (iv) detailed records including receipts for
333 reimbursed expenditures shall be maintained; and (v) if a reimbursement is not made consistent
334 with this paragraph the expenditure shall be deemed an in-kind contribution or loan by the
335 individual and subject to all contribution restrictions.

336 A candidate or treasurer of a political committee required to designate a depository may
337 make expenditures by wire transfer, electronic fund transfer or other electronic means, credit
338 card or debit card; provided, however, that a candidate or treasurer making an expenditure shall
339 ensure that the date, amount and specific purpose of the expenditure is disclosed in accordance
340 with regulations established by the director; and provided further, that a candidate or a treasurer
341 of a candidate's committee for nomination or election to the state senate or house of
342 representatives shall provide such disclosures on the same schedule as set forth in paragraph (3)
343 of subsection (b).

344 SECTION 49. Section 19 of said chapter 55, as so appearing, is hereby amended by
345 striking out the phrase "January 20" wherever it may appear and inserting in place thereof the
346 phrase "January 31".

347 SECTION 50. Section 19 of said chapter 55, as so appearing, is hereby amended by
348 striking the numbers “\$50” wherever they may appear and inserting in its place the following: -
349 \$100.

350 SECTION 51. Section 22 of chapter 55, as so appearing, is hereby amended by striking
351 out in the third paragraph the phrase “(4) the twentieth day of January” and inserting in its place
352 the phrase “January 31”.

353 SECTION 52. Section 22 of chapter 55, as so appearing, is hereby amended by striking
354 out in the fourth paragraph in its entirety and inserting in its place the following: -

355 If the question appears on ballots at a city or town election or appears on ballots for use in
356 a city or town at a state election, such report shall be filed with the city or town clerk as follows:
357 (1) The eighth day preceding a city or town election, and if a town election held on or after
358 November 1 or city election, as a final report, January 31 in the following year complete as to
359 December 31 of the prior year, and all other town elections, as a final report, the thirtieth day
360 following said election;

361 SECTION 53. Section 22 of chapter 55, as so appearing, is hereby amended by deleting
362 the third sentence from the fifth paragraph in its entirety.

363 SECTION 54. Said chapter 55, as so appearing, is hereby amended by inserting after
364 section 22A the following section: -

365 Section 22B: Persons or corporations making contributions or expenditures to influence
366 town warrant articles; filing reports with clerk; penalties.

(a) Terms used in this section shall be construed as follows unless a contrary intention clearly appears:-

“Article”, subjects to be acted upon at a town meeting as referenced in a warrant.

“Town Meeting”, an annual town meeting or special town meeting called pursuant to chapter 39, section 9.

“Warrant”, the call of a town meeting pursuant to chapter 39, section 10.

(b) Any person, corporation, association, organization or other group of persons, which has given, paid, or expended, or promised to give, pay or expend, any money or other thing of value of \$1,000 or more in the aggregate in order to influence or affect an article on a warrant or the vote on any article at a town meeting, shall file reports on a form as prescribed by the director. The form shall include the date each expenditure was made or liability incurred; the purpose of the expenditure or liability; the amount of the expenditure; the full name and address of the person to whom each expenditure was made or liability incurred; the full name and address of the person, corporation, association, organization or the members of other group of persons by whom such expenditure was made or liability incurred; and for each gift, payment or contribution received to make the expenditure or incur the liability (1) the date of receipt; (2) the amount; and (3) the full name and address from whom each gift, payment or contribution was received.

(c) Such reports shall be filed with the town clerk as follows: (i) on the fifth day of each month for any contributions received or expenditures made in the preceding month through the last day of the preceding month; (ii) on the fifth day preceding a town meeting complete as to the

388 seventh day preceding the town meeting; and (iii) as a final report, on the thirtieth day following
389 a town meeting.

390 (d) This section shall not prohibit any officer, employee or agent of the commonwealth or
391 its subdivisions from acting in their official capacity or private capacity relative to an article on a
392 warrant.

393 (e) Violation of any provision of this section shall be punished by imprisonment for not
394 more than one year, or by a fine of not more than \$1,000, or both.

395 SECTION 55. Section 25 of chapter 55, as so appearing, is hereby amended by striking
396 out the first paragraph and inserting in place thereof the following: -

397 The director shall retain all statements and reports filed with the office under the
398 provisions of this chapter by candidates and their committees until December 31st of the
399 fifteenth year following the date that the statement or report was filed.

400 SECTION 56. Section 42 of Chapter 10 of the General Laws, as so appearing in the 2020
401 Official Edition, is hereby amended by striking the section in its entirety and inserting in its place
402 the following: -

403 Section 42: Local Election Early Voting Fund

404 Section 42. There shall be established on the books of the commonwealth a separate fund
405 to be known as the Local Election Early Voting Fund, consisting of all revenues received under
406 section 6C of chapter 62, and all other monies credited or transferred to the fund from any other
407 fund or source pursuant to law.

408 The state treasurer shall deposit the fund in accordance with section 34 of chapter 29 in
409 such manner as will secure the highest interest rate available consistent with safety of the fund.

410 The local election early voting fund shall be expended by the secretary of the
411 commonwealth in the form of grants to local communities for payment of costs related to
412 elections, including, but not limited to, election worker payroll, equipment, voter education,
413 vote-by-mail, early voting, printing, and postage, incurred by the city or town for primary
414 elections, preliminary elections, state elections, local elections, special primary elections, special
415 preliminary elections, special state elections and special local elections.

416 The amount of each grant shall be calculated by dividing the total number of registered
417 voters in the municipality as of the first day of February of each year by the total number of
418 registered voters in the commonwealth as of the first day of February each year and then
419 multiplying the total funds available in the Fund as of the first day of May each year by the
420 resulting percentage, provided that no city or town shall receive more than three percent of the
421 available funds. The funds may be used by the local election official in the municipality for the
422 costs permitted herein without further appropriation.

423 The funds shall be disbursed by the thirty-first day of July each year to be expended
424 during that fiscal year. Any funds received will be deducted from funds found by the State
425 Auditor to be due pursuant to the community Local Mandate Law, G.L. c. 29, § 27C.

426 The secretary of the commonwealth shall promulgate regulations as necessary for the
427 administration of the local election early voting fund.

428 SECTION 57. Sections 42A, 42B and 42C of said Chapter 10, as appearing, are hereby
429 repealed.

SECTION 58. Section 6C of Chapter 62 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking the section in its entirety and inserting in its place the following: -

Section 6C: Massachusetts Local Election Early Voting Fund; voluntary contributions

Section 6C. Every individual who files a separate return may voluntarily contribute one dollar to be paid over to the Local Election Early Voting Fund, established by section forty-two of chapter ten. In the case of a joint return, each spouse may voluntarily contribute one dollar to said fund. A credit in the full amount of any contribution under this section shall be allowed against the tax imposed by this chapter; provided, that for any such return no such credit shall exceed the income tax liability for any taxable year.

A contribution made under this section may be made with respect to any taxable year at the time of filing the return of the tax imposed by this chapter for such taxable year; provided, however, that the commissioner shall prescribe the manner in which such contribution shall be made on the face of the return required by section five of chapter sixty-two C.

The provisions of this section shall apply only to residents required to file a return under this chapter.

For purposes of this section the words "income tax liability for any taxable year" shall mean the amount of tax imposed by this chapter reduced by sum of the credits allowed by clause (a) of section six.

SECTION 59. Chapter 55C, as appearing, is hereby repealed in its entirety.

450 SECTION 60. Any funds remaining in the State Election Campaign Fund established
451 pursuant to Section 42 of Chapter 10 on the effective date of this Act shall be deposited in the
452 Local Election Early Voting Fund.